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ALLMTN,APPEAL,JD1,MJ CIV PP,TERMED

U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:21-cv-02444-CNS-SKC

Ray v. Auto-Owners Insurance Company
Assigned to: Judge Charlotte N. Sweeney
Referred to: Magistrate Judge S. Kato zzz_Crews - MJ
Case in other court: Denver County, State of Colorado,
2021CV32333
U.S. Court of Appeals, 10th Cir., 23-01325
Cause: 28:1332 Diversity-Breach of Contract

Date Filed: 09/09/2021
Date Terminated: 09/14/2023
Jury Demand: Plaintiff
Nature of Suit: 110 Insurance
Jurisdiction: Diversity

Plaintiff

Eric Ray

represented by **Joseph Anton Sirchio**
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Aurora, CO 80014-1474
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ATTORNEY TO BE NOTICED

V.

Defendant

Auto-Owners Insurance Company

represented by **Evan Bennett Stephenson**
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Date Filed	#	Docket Text
09/09/2021	1	NOTICE OF REMOVAL by Auto-Owners Insurance Company from Arapahoe County, State of Colorado, Case Number 2021cv32333. (Filing fee \$ 402, Receipt Number ACODC-8065636), filed by Auto-Owners Insurance Company. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 State Court - Complaint, # 5 State Court - Order Granting Motion for Extension of Time, # 6 State Court - Affidavit of Service, # 7 State Court - Civil Case Cover Sheet, # 8 State Court - Summons, # 9 State Court - Delay Reduction Order, # 10 State Court - Pre-Trial Order, # 11 USDC Cover Sheet)(Scroggins-Uptigrove, Kayla) (Entered: 09/09/2021)
09/09/2021	2	CORPORATE DISCLOSURE STATEMENT identifying Corporate Parent Auto-Owners Insurance Company for Auto-Owners Insurance Company. (Stephenson, Evan) (Entered: 09/09/2021)
09/09/2021	3	NOTICE of Entry of Appearance by Joseph Anton Sirchio on behalf of Eric Ray Attorney Joseph Anton Sirchio added to party Eric Ray(pty:pla) (Sirchio, Joseph) (Entered: 09/09/2021)
09/09/2021	4	FIRST AND FINAL NOTICE TO ALL ATTORNEY(S) AND UNREPRESENTED PARTIES IN REMOVED, TRANSFERRED, OR OTHER CASES. To receive any further notice in a case removed or transferred to this court, or special matters including discovery disputes, bankruptcy appeals, or withdrawals of reference, Multi-district litigation (MDL), etc., all attorneys and unrepresented parties must enter an appearance under D.C.COLO.LAttyR 5(a). An attorney must be an active member of this court's bar and be in good standing in accordance with D.C.COLO.LAttyR 3. A waiver of the fee for bar admission may apply in limited situations. (Text Only Entry) (mbrow,) (Entered: 09/10/2021)
09/09/2021	5	Case assigned to Magistrate Judge S. Kato Crews. Text Only Entry (mbrow,) (Entered: 09/10/2021)
09/09/2021	6	Magistrate Judge consent form issued pursuant to D.C.COLO.LCivR 40.1, direct assignment of civil actions to full time magistrate judges. (mbrow,) (Entered: 09/10/2021)
09/09/2021	7	AFFIDAVIT of service of Summons and Complaint for Auto-Owners Insurance Company on 8/10/2021. (mbrow,) Modified to correct docket text on 9/10/2021 (cpomm,). (Entered: 09/10/2021)
09/09/2021	8	COMPLAINT for Damages and Jury Demand against Auto-Owners Insurance Company, filed by Eric Ray.(cpomm,) (Entered: 09/10/2021)
09/09/2021	9	STATE COURT ORDER GRANTING DEFENDANTS UNOPPOSED MOTION FOR EXTENSION OF TIME TO ANSWER OR OTHERWISE RESPOND TO PLAINTIFFS COMPLAINT by Denver District Court Judge Darryl F. Shockley on 9/2/2021. (cpomm,) (Entered: 09/10/2021)
09/16/2021	10	MINUTE ORDER <i>Telephone Setting Rule 16(b) Scheduling Conference</i> . Telephone Scheduling Conference set for 10/27/2021 10:30 AM in Courtroom C201 before Magistrate Judge S. Kato Crews. The parties shall file their proposed scheduling order and email a copy

		in Word format to Crews_Chambers@cod.uscourts.gov, no later than seven calendar days before the conference. IT IS FURTHER ORDERED that a completed Magistrate Judge Consent Form (ECF. # 6) shall be filed no later than seven calendar days before the conference. At the scheduled time, counsel shall call the Court provided conference line at (888) 251-2909 Access Code: 5662814#. SO ORDERED by Magistrate Judge S. Kato Crews on 9/16/2021. Text Only Entry (amont,) (Entered: 09/16/2021)
09/21/2021	11	<i>Defendant's</i> ANSWER to 8 Complaint by Auto-Owners Insurance Company.(Scroggins-Uptigrove, Kayla) (Entered: 09/21/2021)
10/19/2021	12	Joint MOTION for Extension of Time to <i>Submit Proposed Scheduling Order</i> by Defendant Auto-Owners Insurance Company. (Scroggins-Uptigrove, Kayla) (Entered: 10/19/2021)
10/20/2021	13	Amended MOTION for Extension of Time to <i>Submit Proposed Scheduling Order</i> by Defendant Auto-Owners Insurance Company. (Scroggins-Uptigrove, Kayla) (Entered: 10/20/2021)
10/20/2021	14	ORDER granting 13 Motion for Extension of Time to File. The parties may have up to and including October 25, 2021, to file a Proposed Scheduling Order. By Magistrate Judge S. Kato Crews on 10/20/2021. Text Only Entry (skclcl) (Entered: 10/20/2021)
10/20/2021	15	ORDER finding as moot 12 Motion for Extension of Time to File. The extension of time has been granted 14 . By Magistrate Judge S. Kato Crews on 10/20/2021. Text Only Entry(skclcl) (Entered: 10/20/2021)
10/22/2021	16	CONSENT to Jurisdiction of Magistrate Judge by Defendant Auto-Owners Insurance Company All parties do not consent.. (Scroggins-Uptigrove, Kayla) (Entered: 10/22/2021)
10/22/2021	17	CASE REASSIGNED pursuant to 16 Consent to Jurisdiction of Magistrate Judge. All parties do not consent. This case is randomly reassigned to Judge Lewis T. Babcock. All future pleadings should be designated as 21-cv-02444-LTB. (Text Only Entry) (csarr,) (Entered: 10/22/2021)
10/25/2021	18	Proposed Scheduling Order <i>by Plaintiff and</i> by Defendant Auto-Owners Insurance Company. (Scroggins-Uptigrove, Kayla) (Entered: 10/25/2021)
10/26/2021	19	MEMORANDUM RETURNING CASE by Senior Judge Lewis T. Babcock on 10/26/2021. This case is randomly reassigned to Judge Regina M. Rodriguez and drawn to Magistrate Judge S. Kato Crews. All future pleadings should be designated as 21-cv-02444-RMR . (trvo,) (Entered: 10/26/2021)
10/26/2021	20	ORDER REFERRING CASE to Magistrate Judge S. Kato Crews. Pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this case is referred to the assigned United States Magistrate Judge to (1) convene a scheduling conference under Fed. R. Civ. P. 16(b) and enter a scheduling order meeting the requirements of Local Civ. R. 16.2, (2) conduct such status conferences and issue such orders necessary for compliance with the scheduling order, including amendments or modifications of the scheduling order upon a showing of good cause, (3) hear and determine pretrial matters, including discovery and other non-dispositive motions, (4) conduct hearings, including evidentiary hearings, and submit proposed findings of fact and recommendations for rulings on dispositive motions, and (5) pursuant to Local Civ. R. 16.6 and at the discretion of the Magistrate Judge, convene such early neutral evaluation and/or settlement conferences and direct related procedures as may facilitate resolution of this case without the necessity of a motion or prior authorization of the undersigned. SO ORDERED by Judge Regina M Rodriguez on 10/26/2021. Text Only Entry (rmrja) (Entered: 10/26/2021)
10/27/2021	21	COURTROOM MINUTES for proceedings held before Magistrate Judge S. Kato Crews: Telephone Scheduling Conference held on 10/27/2021. Discovery due by 6/27/2022.

		Dispositive Motions due by 7/27/2022. Joint Status Report due by 1/20/2022. FTR: Courtroom C-201. (amont,) (Entered: 10/27/2021)
10/27/2021	22	SCHEDULING ORDER: by Magistrate Judge S. Kato Crews on 10/27/2021. (amont,) (Entered: 10/27/2021)
11/10/2021	23	Unopposed MOTION for Extension of Time to <i>File Proposed Protective Order</i> by Defendant Auto-Owners Insurance Company. (Attachments: # 1 Proposed Order (PDF Only))(Scroggins-Uptigrove, Kayla) (Entered: 11/10/2021)
11/12/2021	24	Joint MOTION for Protective Order <i>by Plaintiff and</i> by Defendant Auto-Owners Insurance Company. (Attachments: # 1 Proposed Protective Order)(Scroggins-Uptigrove, Kayla) (Entered: 11/12/2021)
11/15/2021	25	MEMORANDUM regarding 24 Joint MOTION for Protective Order <i>by Plaintiff and</i> filed by Auto-Owners Insurance Company, 23 Unopposed MOTION for Extension of Time to <i>File Proposed Protective Order</i> filed by Auto-Owners Insurance Company. Motions referred to Magistrate Judge S. Kato Crews. By Judge Regina M Rodriguez on 11/15/2021. Text Only Entry (rmrja) (Entered: 11/15/2021)
11/16/2021	26	NOTICE of Entry of Appearance of <i>Hannah S. McCalla</i> by Hannah Seifert McCalla on behalf of Auto-Owners Insurance Company Attorney Hannah Seifert McCalla added to party Auto-Owners Insurance Company(pty:dft) (McCalla, Hannah) (Entered: 11/16/2021)
11/19/2021	27	STIPULATION for Extension of Time <i>for Defendant to Respond to Plaintiff's First Set of Written Discovery</i> by Defendant Auto-Owners Insurance Company. (McCalla, Hannah) (Entered: 11/19/2021)
11/19/2021	28	PROTECTIVE ORDER granting 24 Motion for Protective Order by Magistrate Judge S. Kato Crews on November 19, 2021.(csarr,) (Entered: 11/19/2021)
01/20/2022	29	Joint STATUS REPORT by Defendant Auto-Owners Insurance Company. (McCalla, Hannah) (Entered: 01/20/2022)
04/07/2022	30	Unopposed MOTION to Amend/Correct/Modify 22 Scheduling Order by Defendant Auto-Owners Insurance Company. (Attachments: # 1 Proposed Order (PDF Only))(McCalla, Hannah) (Entered: 04/07/2022)
04/07/2022	31	MEMORANDUM regarding 30 Unopposed MOTION to Amend/Correct/Modify 22 Scheduling Order filed by Auto-Owners Insurance Company. Motion referred to Magistrate Judge S. Kato Crews, by Judge Regina M. Rodriguez on 4/7/2022. Text Only Entry (rmrja) (Entered: 04/07/2022)
04/12/2022	32	ORDER ON DEFENDANT'S UNOPPOSED MOTION TO AMEND SCHEDULING ORDER (ECF NO. 22) by Magistrate Judge S. Kato Crews on April 12, 2022.(csarr,) (Entered: 04/12/2022)
07/26/2022	33	Unopposed MOTION for Leave to <i>Depose Dr. Knight After Close of Discovery</i> by Defendant Auto-Owners Insurance Company. (Attachments: # 1 Proposed Order (PDF Only))(McCalla, Hannah) (Entered: 07/26/2022)
07/26/2022	34	MEMORANDUM regarding 33 Unopposed MOTION for Leave to <i>Depose Dr. Knight After Close of Discovery</i> filed by Auto-Owners Insurance Company. Motion referred to Magistrate Judge S. Kato Crews, by Judge Regina M. Rodriguez on 7/26/2022. Text Only Entry (rmrja) (Entered: 07/26/2022)
07/26/2022	35	ORDER granting 33 Motion for Leave. The deadline for discovery is extended for the sole purpose of conducting Dr. Pamela Knight's deposition. By Magistrate Judge S. Kato Crews on 7/26/2022. Text Only Entry (skclcl1) (Entered: 07/26/2022)

07/27/2022	36	Unopposed MOTION for Leave to <i>DEPOSE AUTO-OWNERS INSURANCE COMPANYS F.R.C.P. 30(b)(6) REPRESENTATIVE</i> 32 Order on Motion to Amend/Correct/Modify by Plaintiff Eric Ray. (Sirchio, Joseph) (Entered: 07/27/2022)
07/27/2022	37	MEMORANDUM regarding 36 Unopposed MOTION for Leave to <i>DEPOSE AUTO-OWNERS INSURANCE COMPANYS F.R.C.P. 30(b)(6) REPRESENTATIVE</i> 32 Order on Motion to Amend/Correct/Modify filed by Eric Ray. Motion referred to Magistrate Judge S. Kato Crews, by Judge Regina M. Rodriguez on 7/27/2022. Text Only Entry (rmrja) (Entered: 07/27/2022)
08/01/2022	38	REASSIGNMENT OF JUDGE. This action is reassigned to Judge Charlotte N. Sweeney upon her appointment. Unless otherwise ordered, the dates and times for all previously scheduled matters will be maintained and will now be handled by Judge Sweeney in Courtroom 204 in the Byron Rogers Courthouse. Her chambers are located in C-253 and her telephone number is (303) 335-2610. All future pleadings should be designated as 21-cv-2444-CNS-SKC . (Text only entry) (angar,) (Entered: 08/01/2022)
08/02/2022	39	Unopposed MOTION for Leave to <i>Continue Discovery</i> by Defendant Auto-Owners Insurance Company. (Stephenson, Evan) (Entered: 08/02/2022)
08/03/2022	40	MEMORANDUM regarding 39 Unopposed MOTION for Leave to <i>Continue Discovery</i> filed by Auto-Owners Insurance Company. Motion 39 is referred to Magistrate Judge S. Kato Crews, by District Judge Charlotte N Sweeney on 8/3/2022. Text Only Entry (cnssec,) (Entered: 08/03/2022)
08/10/2022	41	MINUTE ORDER: A Final Pretrial Conference is set for 1/26/2023 at 8:30 AM in Courtroom C204 before District Judge Charlotte N Sweeney. The parties' Proposed Pretrial Order is due by 1/19/2023. By District Judge Charlotte N Sweeney on 8/10/2022. Text Only Entry (cnssec.) (Entered: 08/10/2022)
08/14/2022	42	ORDER granting 39 Motion for Leave; granting 36 Motion for Leave. To the extent it has not been completed, the Parties may take the 30(b)(6) deposition outside the deadline for discovery. In addition, discovery may continue as to Plaintiff's subsequent accident. No other deadlines are extended by this order. By Magistrate Judge S. Kato Crews on 8/14/2022. Text Only Entry (skclcl1) (Entered: 08/14/2022)
12/29/2022	43	Unopposed MOTION to Vacate and Reset the January 26, 2023 Final Pretrial Conference and Related Deadline by Defendant Auto-Owners Insurance Company. (McCalla, Hannah) (Entered: 12/29/2022)
01/03/2023	44	ORDER granting 43 Unopposed Motion to Vacate and Reset the January 26, 2023 Final Pretrial Conference and Related Deadline. The deadline for the parties to submit a Proposed Pretrial Order is extended to 2/27/2023 and the Final Pretrial Conference set for 1/26/2023 is RESET for 3/6/2023 at 1:30 PM in Courtroom C204 before Judge Charlotte N. Sweeney. By Judge Charlotte N. Sweeney on 1/3/2023. Text Only Entry(cnssec.) (Entered: 01/03/2023)
02/27/2023	45	Proposed Pretrial Order <i>Joint</i> by Defendant Auto-Owners Insurance Company. (Attachments: # 1 Exhibit Plaintiff's Trial Exhibit List, # 2 Exhibit Auto-Owners Trial Exhibit List)(McCalla, Hannah) (Entered: 02/27/2023)
03/06/2023	46	MINUTE ENTRY for proceedings held before Judge Charlotte N. Sweeney: Final Pretrial Conference held on 3/6/2023. Four-day Jury Trial set to commence 9/11/2023 at 8:00 AM in Courtroom C204 before Judge Charlotte N. Sweeney with a Trial Preparation Conference on 8/28/2023 at 3:00 PM in Courtroom C204 before Judge Charlotte N. Sweeney. Court Reporter: Kevin Carlin. (jdyne) (Entered: 03/06/2023)
03/06/2023	47	FINAL PRETRIAL ORDER by Judge Charlotte N. Sweeney on 3/6/23. (jdyne) (Entered: 03/06/2023)

03/06/2023	48	ORDER SETTING TRIAL: Four-day Jury Trial set to commence 9/11/2023 at 8:00 AM in Courtroom C204 before Judge Charlotte N. Sweeney with a Trial Preparation Conference on 8/28/2023 at 3:00 PM in Courtroom C204 before Judge Charlotte N. Sweeney. Both the Uniform Civil Practice Standards and this Court's Standing Order Regarding Pretrial and Trial Procedures are located at www.cod.uscourts.gov/JudicialOfficers/ActiveArticleIIIJudges/HonCharlotteNSweeney.aspx by Judge Charlotte N. Sweeney on 3/6/23. (jdyne) (Entered: 03/06/2023)
08/07/2023	49	MOTION in Limine by Plaintiff Eric Ray. (Sirchio, Joseph) (Entered: 08/07/2023)
08/07/2023	50	MOTION in Limine by Defendant Auto-Owners Insurance Company. (Attachments: # 1 Exhibit A - Plaintiff's Expert Disclosures, # 2 Exhibit B - PTC Hearing Transcript, Reed v. Owners, Case No. 21-cv-2594)(McCalla, Hannah) (Entered: 08/07/2023)
08/14/2023	51	RESPONSE to 49 MOTION in Limine filed by Defendant Auto-Owners Insurance Company. (Attachments: # 1 Exhibit A - Colo. Hospitality Servs. v. Owners Jury Instruction, # 2 Exhibit B - Kules v. Am. Family. Mut. Ins. Co. Jury Instruction, # 3 Exhibit C - MacKinney v. Allstate Fire & Cas. Ins. Co, # 4 Exhibit D - Persichette v. Owners Order, # 5 Exhibit E - Menzel Deposition, # 6 Exhibit F - Reed v. Owners Hearing Transcript) (McCalla, Hannah) (Entered: 08/14/2023)
08/14/2023	52	RESPONSE to 50 MOTION in Limine filed by Plaintiff Eric Ray. (Attachments: # 1 Exhibit Deposition of Dr. Rumley, # 2 Exhibit Deposition of Dr. Knight)(Sirchio, Joseph) (Entered: 08/14/2023)
08/21/2023	53	Proposed Voir Dire by Plaintiff Eric Ray. (Sirchio, Joseph) (Entered: 08/21/2023)
08/21/2023	54	Witness List by Plaintiff Eric Ray. (Sirchio, Joseph) (Entered: 08/21/2023)
08/21/2023	55	Witness List by Defendant Auto-Owners Insurance Company. (McCalla, Hannah) (Entered: 08/21/2023)
08/21/2023	56	Proposed Voir Dire <i>Questions</i> by Defendant Auto-Owners Insurance Company. (McCalla, Hannah) (Entered: 08/21/2023)
08/21/2023	57	Exhibit List <i>Draft Joint</i> by Defendant Auto-Owners Insurance Company. (McCalla, Hannah) (Entered: 08/21/2023)
08/23/2023	58	NOTICE of Time Estimates Required for Its Cross-Examination of Plaintiff's Witnesses by Defendant Auto-Owners Insurance Company (McCalla, Hannah) (Entered: 08/23/2023)
08/23/2023	59	NOTICE re 55 Witness List Time Estimates Required for its Cross-Examination of Defendant's Witnesses by Plaintiff Eric Ray (Sirchio, Joseph) (Entered: 08/23/2023)
08/24/2023	60	TRIAL BRIEF by Defendant Auto-Owners Insurance Company. (Attachments: # 1 Exhibit A - Olsen Jury Instruction, # 2 Exhibit B - Persichette Jury Instruction, # 3 Exhibit C - Ray Deposition)(McCalla, Hannah) (Entered: 08/24/2023)
08/25/2023	61	OBJECTIONS to Plaintiff's Trial Exhibits by Defendant Auto-Owners Insurance Company. (Stephenson, Evan) (Entered: 08/25/2023)
08/28/2023	62	MINUTE ENTRY for proceedings held before Judge Charlotte N. Sweeney: Trial Preparation Conference held on 8/28/2023. 49 Plaintiff's Motion in Limine is GRANTED in part and DENIED in part. 50 Defendant's Motion in Limine is DENIED. Court Reporter: Janet Coppock. (jdyne) (Entered: 08/28/2023)
08/29/2023	63	BRIEF Plaintiff's Response to Defendant's Trial Brief on the "Suspension Rule" by Plaintiff Eric Ray. (Sirchio, Joseph) (Entered: 08/29/2023)

09/01/2023	64	OBJECTIONS to <i>Defendant's Exhibits</i> by Plaintiff Eric Ray. (Sirchio, Joseph) (Entered: 09/01/2023)
09/05/2023	65	Exhibit List - <i>Joint</i> by Defendant Auto-Owners Insurance Company. (McCalla, Hannah) (Entered: 09/05/2023)
09/06/2023	66	TRANSCRIPT of Trial Preparation Conference held on August 28, 2023 before Judge Charlotte N. Sweeney. Pages: 1-18. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (jcopp,) (Entered: 09/06/2023)
09/08/2023	67	Witness List <i>Final</i> by Plaintiff Eric Ray. (Sirchio, Joseph) (Entered: 09/08/2023)
09/08/2023	68	Witness List by Defendant Auto-Owners Insurance Company. (McCalla, Hannah) (Entered: 09/08/2023)
09/11/2023	69	MINUTE ENTRY for proceedings held before Judge Charlotte N. Sweeney: Jury Trial Day One held on 9/11/2023. Jury selected, opening statements given, evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (jdyne) (Entered: 09/11/2023)
09/11/2023	70	Jury Strike Sheet - Unredacted - Level 3 - Viewable by Court Only. (jdyne) (Entered: 09/11/2023)
09/11/2023	71	Jury Strike Sheet - redacted. (jdyne) (Entered: 09/11/2023)
09/12/2023	72	MINUTE ENTRY for proceedings held before Judge Charlotte N. Sweeney: Jury Trial Day Two held on 9/12/2023. Evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (jdyne) (Entered: 09/12/2023)
09/13/2023	73	MINUTE ENTRY for proceedings held before Judge Charlotte N. Sweeney: Jury Trial Day Three held on 9/13/2023. Evidence and testimony presented, closing arguments given, jury deliberations begin, trial continued. Court Reporter: Sarah Mitchell. (Attachments: # 1 Clerk's working exhibit list) (jdyne) (Additional attachment(s) added on 9/13/2023: # 2 Juror questions) (jdyne,). (Entered: 09/13/2023)
09/13/2023	74	Plaintiff's tendered and rejected jury instructions. (jdyne) (Entered: 09/13/2023)
09/13/2023	75	Defendant's tendered and rejected jury instructions.(jdyne) (Entered: 09/13/2023)
09/13/2023	76	Jury Instructions given 9/13/23(jdyne) (Entered: 09/13/2023)
09/14/2023	77	MINUTE ENTRY for proceedings held before Judge Charlotte N. Sweeney: Jury Trial Day Four completed on 9/14/2023. Jury deliberations; JURY VERDICT, trial concluded. Court Reporter: Mary George. (jdyne) (Entered: 09/14/2023)
09/14/2023	78	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (jdyne) (Entered: 09/14/2023)
09/14/2023	79	JURY VERDICT - juror names redacted (jdyne) (Entered: 09/14/2023)
09/14/2023	80	FINAL JUDGMENT in favor of the defendant, Auto-Owners Insurance Company, and against the plaintiff, Eric Ray. By Clerk on 9/14/23. (jdyne) (Entered: 09/14/2023)

09/28/2023	81	Proposed Bill of Costs by Defendant Auto-Owners Insurance Company. (Attachments: # 1 Taxation of Costs Form, # 2 Summary of Itemization & Documentation, # 3 Tab 1 - Fees of the Clerk, # 4 Tab 2 - Fees for Printed or Electronically Recorded Transcripts, # 5 Tab 3 - Fees and Disbursements for Printing and Witnesses, # 6 Tab 4 - Fees for Exemplification and Costs for Copies, # 7 Tab 5 - Docket Fee, # 8 Tab 6 - Other Costs)(McCalla, Hannah) (Entered: 09/28/2023)
10/11/2023	82	NOTICE by the Clerk re 81 Proposed Bill of Costs. As set in the Proposed Bill, the hearing for this matter will be held on December 13, 2023 at 8:30 a.m. MST. The hearing will be held IN PERSON - the parties are directed to have counsel asserting the Proposed Bill of Costs and opposing counsel presenting objections be physically present for the hearing. The hearing will be held in Courtroom C401 (4th floor) of the Byron Rogers U.S. Courthouse, 1929 Stout Street, Denver [NOT the Arraj Courthouse].The Clerk reminds the parties that a Statement of Conferral must be filed no later than the close of business of the clerk's office at 5:00 p.m. (Mountain Time) the day before the hearing in order to confirm the attempts to reach a settlement on either some or all of the requested costs, per local rules LCivR 54.1 and 77.1, and to confirm the parties have utilized the Clerk's Guide to Bills of Cost Hearings (see attached) in their discussions. Failure to file a Statement of Conferral by the close of business the day before the hearing will result in the Bill of Costs being summarily denied and the hearing will be vacated. Finally, the Clerk strongly encourages the parties to reach an agreement as to individual costs items - or preferably - a global settlement, in light of the Rule One directive that the court and PARTIES work to secure the just, speedy, and inexpensive determination of every action and proceeding. (ashee) (Entered: 10/11/2023)
10/11/2023	83	NOTICE OF APPEAL as to 80 Judgment by Plaintiff Eric Ray (Filing fee \$ 505, Receipt Number ACODC-9339487) (Sirchio, Joseph) (Entered: 10/11/2023)
10/13/2023	84	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 83 Notice of Appeal filed by Eric Ray to the U.S. Court of Appeals. (Retained Counsel, Fee paid.) (Attachments: # 1 Preliminary Record and Docket Sheet)(sphil,) (Entered: 10/13/2023)
10/13/2023	85	USCA Case Number 23-1325 for 83 Notice of Appeal filed by Eric Ray. (sphil,) (Entered: 10/17/2023)
10/27/2023	86	TRANSCRIPT ORDER FORM re 83 Notice of Appeal by Plaintiff Eric Ray (Sirchio, Joseph) (Entered: 10/27/2023)
12/04/2023	87	REPORTER TRANSCRIPT ORDER FORM filed by Mary George re: 83 Notice of Appeal. Transcript due by 1/30/2024. (nrich) (Entered: 12/04/2023)
12/12/2023	88	NOTICE by Clerk re 81 Proposed Bill of Costs, 82 Notice. The Bill of Costs hearing set for December 13, 2023 at 8:30 a.m. is VACATED. A decision on Costs is stayed pending the outcome of the pending appeal. The prevailing party is directed to file (or refile) a Proposed Bill of Costs, after resolution of the appeal. Text Only Entry (ashee) (Entered: 12/12/2023)
01/11/2024	89	REPORTER TRANSCRIPT ORDER FORM filed by Sarah Mitchell; Transcripts ordered September 11-13, 2023 Jury Trial Transcript due by 2/5/2024. (smitec,) (Entered: 01/11/2024)
01/22/2024	90	USCA Order as to 83 Notice of Appeal filed by Eric Ray : APPEAL is DISMISSED. Each party will bear their own costs on appeal. (USCA Case No. 23-1325). (This document is not the Mandate) (sphil,) (Entered: 01/24/2024)
03/05/2024	91	NOTICE of Settlement and Withdrawal of Defendant's Proposed Bill of Costs by Defendant Auto-Owners Insurance Company (McCalla, Hannah) (Entered: 03/05/2024)

PACER Service Center			
Transaction Receipt			
04/27/2026 22:08:11			
PACER Login:	ehelland	Client Code:	
Description:	Docket Report	Search Criteria:	1:21-cv-02444-CNS-SKC
Billable Pages:	8	Cost:	0.80
Exempt flag:	Exempt	Exempt reason:	Exempt Court Order